



ONTARIO LABOUR RELATIONS BOARD

OLRB Case No: **2407-22-G**

Labourers' International Union of North America, Local 183, Applicant v
1560750 Ontario Inc. o/a Concrete Construction & Restoration,
Responding Party

BEFORE: Thomas Kuttner, KC, Vice-Chair

APPEARANCES: Amanda Laird and Candido Capitaio appearing for the
Applicant; Wayne Chung appearing for the Responding Party

DECISION OF THE BOARD: February 15, 2023

1. This is a referral of a grievance pursuant to section 133 of the *Labour Relations Act, 1995*, S.O. 1995, c.1, as amended ("the Act"; "LRA").
2. The responding party ("the Employer") filed no response, although it did file a Notice of Intent to Defend/Participate in respect of the grievance referral.
3. On or about February 9, 2023, the Registrar issued a Notice of Video Hearing, which set February 14, 2023 as the date of hearing.
4. At the hearing, the applicant ("the Union") requested that, in light of the Employer's failure to file a response, the Board grant the declarations sought in the grievance referral pursuant to Rules 2.1 and 2.3 of the Board's *Rules of Procedure*. These stipulate:
 - 2.1 The Board may decide an application without further notice to anyone who has not filed a document in the way required by these Rules.
 - 2.3 If a party receiving notice of an application does not file a response in the way required by these Rules, he or she

may be deemed to have accepted all the facts stated in the application, and the Board may cancel a hearing or consultation, if one is scheduled, and decide the case upon the material before it without further notice.

5. In view of the Employer's failure to file a timely response to this proceeding, the Board deems the employer to have accepted the veracity of the factual allegations made by the Union in its application, pursuant to Rule 2.3.

6. By reason of a Memorandum of Agreement dated April 1, 2003 ("the MOA") the Union has bargaining rights for all construction Employees of the Employer in all sectors of the construction industry, save and except the ICI sector, in Board Areas 8, 9, 10, 11, and 18, and that portion of 12 west of the Trent Severn Waterway.

7. Pursuant to the MOA, and LRA subsection 138(2), the Employer is bound to the Collective Agreement in effect between the Union and the Heavy Construction Association of Toronto ("the Association"), an accredited employers' association, in effect between May 1, 2022 and April 30, 2025.

8. On January 9, 2023, the Union filed a grievance against the Employer's performance of work falling within the scope of the Collective Agreement, on all jobsites within the geographic reach of the Collective Agreement, including but not limited to the Graham Brothers Construction jobsite known as the Victoria Square Boulevard Carlton Creek Culvert located at or near Victoria Square Boulevard and Elgin Mills Road in Markham, Ontario (Board Area 8)("the Site"), beginning on December 1, 2022 and extending to January, 2023 ("the Grievance").

9. In December 2022, there were five employees performing carpentry work for the Employer at the Site for approximately eighty (80) hours each. Of these only two were members of the Union and issued clearance slips, but the remaining three (3) were either non-union members or not issued a clearance slip. The Union calculates the damages at the site for these three carpenters, who performed eighty (80) hours work each at the site in December 2022 in violation of the Collective Agreement amounting to \$16,190.40 (240 hours x \$67.46 carpenter total package).

10. In January 2023, three (3) employees, either non-union members or lacking a clearance slip, performed either labourers' work or carpenters' work at the Site: Fifty-six (56) hours for the labourer;

and thirty-two (32) hours for the two carpenters. The Union calculates the damages at the site for hours worked in January 2023 in violation of the Collective Agreement to be \$7,972.00 (56 hours x \$65.26 labourer total package + 64 hours x \$66.46 carpenter total package).

11. The Union estimates and claims the total damages on a *Blouin Drywall*¹ basis to amount to \$24,162.40 (\$16,190.40 + \$7,972.00), for the hours of work performed at the Site in violation of the Collective Agreement in December 2022 and January 2023.

12. In view of the foregoing, the Board issues the following relief as requested by the Union:

- A Declaration that the Employer is bound by and has violated the Collective Agreement between the Union and the Heavy Construction Association of Toronto, effective May 1, 2022 to April 30, 2025;
- An Order that the Employer cease and desist from violating the Collective Agreement; and
- An Order that the Employer pay damages to the Union as calculated herein, on a *Blouin Drywall* Basis to compensate the Union for the Employer's violations of the Collective Agreement.

13. The Union sought as well an Order that the Employer reimburse its fees with respect to the within application pursuant to LRA subsection 133(13). However, inasmuch as the Employer participated in these proceedings, the Union is not entitled to such relief.

14. This application is granted.

"Thomas Kuttner, KC"
for the Board

¹ *Re Blouin Drywall Contractors and United Brotherhood of Carpenters and Joiners of America, Local 2468*, (1975) 8 O.R. (2d) 103 (ON CA); 1975 CanLII 707 (ON CA).